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File No: EXP202312994

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 16, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ARRENDAMIENTOS DEUDORES, S.L. (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No: EXP202312994

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 14, 2023, Mr. A.A.A. (hereinafter, the claiming party) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against ARRENDAMIENTOS DEUDORES, S.L. with NIF B65573909 (hereinafter, the claimed party). The reasons on which the complaint is based are as follows:

The claiming party states that after making a request for access to their data registered in the ASNEF file, it appears in the consultation history an entity named ARRENDAMIENT.DEUD.SL with address AVDA FRANCESC MACIA 1 ENT 5 SANTA COLOMA 08923, to which they do not recall having given their authorization.

Along with the complaint, they provide a report of the operations in the ASNEF file in which the consultation made by the claimed party on April 25, 2023, is recorded.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the claimed party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on October 30, 2023, as stated in the acknowledgment of receipt in the file.

On December 5, 2023, a response was received by this Agency in which, in summary, the claimed party states that ARRENDATARIOS DEUDORES SL consulted the information contained in the ASNEF file on April 25, 2023, as a result of a consultation for a transaction that involved a possible economic risk, in order to verify whether they were up to date with similar transactions with 2 other entities.

THIRD: On November 14, 2023, in accordance with Article 65 of the LOPDGDD, the admission for processing of the complaint filed by the claiming party was communicated.

FOURTH: According to the report obtained from the AXESOR tool, the entity ARRENDAMIENTOS DEUDORES, S.L. is a microenterprise established in 2011, with a business volume of €157,978 in the year 2020.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

ARRENDAMIENTOS DEUDORES, S.L. with NIF B65573909, is a microenterprise whose corporate purpose is the intermediation and pooling of resources in the provision of services and in the development of advisory and consultancy activities for professionals, owners, and landlords, etc. For the development of these activities, it processes personal data, understanding personal data as: "any information relating to an identified or identifiable natural person."

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The term "processing" shall be understood as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction." (the underlining is ours).

In the present case, the processing carried out by the responding party has been the consultation of personal data of the claiming party in the ASNEF file.

The General Data Protection Regulation, in its Article 4.11, defines the consent of the data subject as "any freely given, specific, informed and unambiguous indication of the data subject's wishes by which they signify agreement, either by a statement or by a clear affirmative action, to the processing of personal data concerning them."

In this regard, Article 6.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, establishes that "in accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, consent of the affected party is understood as any freely given, specific, informed and unambiguous indication of the affected party's wishes by which they signify agreement, either by a statement or by a clear affirmative action, to the processing of personal data concerning them."

III

Obligation not fulfilled. Lawfulness of processing.

The GDPR requires that the processing of personal data be lawful (Article 5.1.a), a principle that is developed in Article 6, whose paragraph 1 states that processing shall be lawful only if at least one of the circumstances listed applies.

Thus, Article 6 of the GDPR under the heading "Lawfulness of processing" specifies in its paragraph 1 the cases in which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the

exercise of official authority vested in the data controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject.”

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interested parties requiring the protection of personal data, particularly when the interested party is a child.

The provisions in paragraph f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.”

On this issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, either in this Regulation or under another law of the Union or of the Member States to which this Regulation refers, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of performing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

On the other hand, Article 20 of the LOPDGDD, “Credit Information Systems,” states in its section 1:

“1. Unless proven otherwise, the processing of personal data related to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

e) That the data related to a specific debtor may only be consulted when the individual consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or the affected party has requested the establishment of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts. When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system shall inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

f) That, in the event that the request for the establishment of the contract is denied, or it is not concluded as a result of the consultation made, the individual who has consulted the system shall inform the affected party of the result of that consultation.”

Therefore, in light of the above, in order to consult the data, it is necessary for the interested party to have entered into a contract that involves the payment of a monetary amount or requested a contract that implies financing, deferred payment, or periodic billing, which is not established to have occurred in this case. Based on the foregoing, in the analyzed case, the presumption of lawfulness contemplated in Article 20 of the LOPDGDD cannot be taken into consideration, as the requirements set forth in this article are not met.

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The documentation in the file provides clear indications that the responding party violated Article 6 of the GDPR, as there is no legitimate basis for the processing of the personal data of the claiming party. The data controller, as stated in its response dated December 5, 2023, to this Agency, consulted the information contained in the ASNEF file regarding a transaction that involved a potential economic risk, in order to verify whether it was up to date with similar transactions with two other entities. However, and this is essential, there is no evidence of any cause that legitimizes the data processing carried out.

The lack of diligence displayed by the responding party in fulfilling the obligations imposed by personal data protection regulations is, therefore, evident. A diligent compliance with the principle of lawfulness in the processing of personal data requires that the processing is based on one of the causes provided for in Article 6 of the GDPR, which, applied to the case analyzed, means that it must be able to demonstrate that the data subject consented to the consultation of their personal data or that it relied on a prevailing legitimate interest and exercised reasonable diligence necessary to substantiate that point. Failing to act in this manner would empty the principle of lawfulness of its content. In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, given that the responding party has not demonstrated that the processing of the claiming party's data can be based on the lawful basis contemplated in Article 6.1(f) of the GDPR, nor their consent for such processing, it is considered that the known facts could constitute an infringement attributable to the responding party for violation of Article 6.1 of the GDPR.

IV

Classification of the infringement of Article 6.1 of the GDPR

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

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For the purposes of the statute of limitations, Article 72 "Very Serious Offenses" of the LOPDGDD states:

"1. In accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data without any of the lawful conditions for processing established in Article 6 of Regulation (EU) 2016/679.

V

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case,

effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 "Sanctions and Corrective Measures" of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The link of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

Considering the factors outlined, the initial assessment of the amount of the fine is €2,000 for the infringement of Article 6.1 of the aforementioned GDPR.

VI

Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an

administrative fine, as provided for in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ARRENDAMIENTOS DEUDORES, S.L., with NIF B65573909, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of 2,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to ARRENDAMIENTOS DEUDORES, S.L., with NIF B65573909, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 1,600.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

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The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the

resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 1,200.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), they must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

They must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-30102023

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 1, 2024, the respondent has proceeded to pay the sanction in the amount of 1,200 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202312994, in accordance with the provisions of Article 85 of the LPACAP.

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SECOND: TO NOTIFY this resolution to ARRENDAMIENTOS DEUDORES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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